

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14, RICHMOND
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 03/17/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRIV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L21-06068

CASE NAME: CAPITAL ONE BANK (USA),N.A. VS. JEFFREY KRATO

*HEARING ON MOTION IN RE: SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION
FILED BY: CAPITAL ONE BANK (USA),N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation.
The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

A proof of service indicates that Plaintiff served Defendant with notice of this Motion by

mail. However, the mailing address on the proof of service differs from that where Defendant was personally served with process. What's more, Defendant has never filed anything with the court that indicates his mailing address. Thus, there is insufficient evidence to suggest Defendant was served with notice of this Motion. plaintiff.

Disposition

Plaintiff's Motion is continued to 5/26/26, 9am, for Plaintiff to serve Defendant with notice of this Motion.

Plaintiff to file order on Motion.

2. 9:00 AM CASE NUMBER: L22-03034

CASE NAME: JPMORGAN CHASE BANK N.A. VS. KIRSTEN SANDSTROM

***HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION FILED BY PLN ON 12/30/25**

FILED BY: JPMORGAN CHASE BANK N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where she was personally with notice of the Summons and Complaint. The address was also in an attachment to the Complaint.

Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in

the amount of \$10,800, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$5,886.

Costs are \$0.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$4,914.

Plaintiff to file order on Motion, as well as submit Judgment.

3. 9:00 AM CASE NUMBER: L23-06799

CASE NAME: BANK OF AMERICA N.A. VS. DEJA HAYNES

***HEARING ON MOTION IN RE: SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION**

FILED BY: BANK OF AMERICA N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation.

The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

A proof of service was filed indicating mail service on the Defendant. However, there's no evidence to support that this is, in fact, the proper mailing address for Defendant. Defendant was never served with the Summons and Complaint in this matter, and has never filed any pleadings.

Though a stipulation between the parties was purportedly reached and filed with the court, the court does not find, by a preponderance, that the Defendant is aware of this Motion.

Disposition

Plaintiff's Motion will be continued to 5/26/26, 9am, for service on the Defendant.

Plaintiff to file order on Motion.

4. 9:00 AM CASE NUMBER: L24-06833

CASE NAME: JPMORGAN CHASE BANK, N.A. VS. ANGEL CASTANON

*HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER
STIPULATION FILED BY PLN ON 12/30/25

FILED BY: JPMORGAN CHASE BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation.
The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where he was served via substitute service – by a registered process server - with notice of the Summons and Complaint. The proof of service of the Summons and Complaint included a declaration of diligence, where the process server indicated they spoke, at the address, to a woman identifying herself as the spouse of the Defendant, and who indicated Defendant resided at that address. The address was also in an attachment to the Complaint.

Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that he was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$7,686,67, plus costs, less any credits for payments received.

The Defendant made payments of \$5,466,00.

Costs are \$0.

The Stipulated Agreement was filed 2/3/25.

A dismissal was entered on 2/3/25.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$2,220.67.

Plaintiff to file order on Motion, as well as submit Judgment.

5. 9:00 AM CASE NUMBER: L24-07535

CASE NAME: CAPITAL ONE, N.A. VS. KYLE SHIMAMOTO

***HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT**

FILED BY: CAPITAL ONE, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where he was personally with notice of the Summons and Complaint. The address was also in an attachment to the Complaint.

Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that he was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$17,135.78, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$662.18.

Costs are \$583.61.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$17,057.21.

Plaintiff to file order on Motion, as well as submit Judgment.

6. 9:00 AM CASE NUMBER: L25-01059
CASE NAME: CAPITAL ONE, N.A. VS. ANDREW LAWRENCE
*HEARING ON MOTION IN RE:
FILED BY: CAPITAL ONE, N.A.
TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant's counsel of record.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$28,993.45, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$3,384.

Costs are \$523.61.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$26,133.06.

Plaintiff to file order on Motion, as well as submit Judgment.

7. 9:00 AM CASE NUMBER: L25-01668

CASE NAME: FARIBORZ GHORBAN VS. VICTOR OSORIA

*HEARING ON MOTION IN RE: TO CORRECT CASE CLASSIFICATION FROM LIMITED TO UNLIMITED
(CONTINUED FROM 1/27/26)

FILED BY: GHORBAN , FARIBORZ

TENTATIVE RULING:

Background

Plaintiff filed this Motion on 11/4/25, and it was originally scheduled for 1/27/26. However, the court continued the Motion to 3/17/26, because Plaintiff had not served Defendant with notice of the Motion.

As of this writing, Plaintiff still has not served Defendant with notice of the Motion.

This will not be continued again. Plaintiff can refile if they choose.

Disposition

Motion will be dropped from the calendar.

8. 9:00 AM CASE NUMBER: L25-03569

CASE NAME: WELLS FARGO BANK, NA VS. EHSANUDDIN NAEBKHIL

*HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS

FILED BY: WELLS FARGO BANK, NA

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Judgment on the Pleadings. The motion was timely served on counsel for Defendant. The Motion is unopposed.

On 12/4/25, the court granted Plaintiff's Motion to deem matters true those requested in Plaintiff's Request for Admissions. All but the final request for admission were deemed to be true by the court.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., §

7:291. Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff's Complaint alleges Breach of Written Contract and Breach of Contract (Implied in Fact). Plaintiff alleges that Defendant became indebted in the amount of \$15,363.44, on a credit card account.

Defendant's Answer denies the allegations of the Complaint and states various affirmative defenses.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the "RFAs") served on Defendant which was granted by the Court. See Order entered 11/10/25 (the "Deemed Admitted Order"). The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the contract with the Plaintiff, and to admit the subject debt and the amount owing, \$15,363.44.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 ("Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.").

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. Plaintiff shall file Order.

9. 9:00 AM CASE NUMBER: L25-04407
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. EMERSON ALVARADO
***HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER**
STIPULATION FILED 12/30/25
FILED BY: JPMORGAN CHASE BANK, N.A.
TENTATIVE RULING:
JP Morgan Chase v. Emerson Alvarado

Disposition

Plaintiff filed a request for dismissal with prejudice, subsequent to the filing of this motion.

This Motion is moot and will be vacated.

10. 9:00 AM CASE NUMBER: L25-04542

CASE NAME: CAPITAL ONE, N.A. VS. GESSER SANTOS

***HEARING ON MOTION IN RE:**

FILED BY: CAPITAL ONE, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where he was personally with notice of the Summons and Complaint. The address was also in an attachment to the Complaint.

Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that he was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$10,004.92, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$2,234.92.

Costs are \$873.61.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$8,643.61.

Plaintiff to file order on Motion, as well as submit Judgment.

11. 9:00 AM CASE NUMBER: L25-05459

CASE NAME: JPMORGAN CHASE BANK N.A. VS. AMBER AMBRUS

***HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER
STIPULATION FILED 12/30/25**

FILED BY: JPMORGAN CHASE BANK N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where she was personally served with notice of the Summons and Complaint. The address was also in an attachment to the Complaint. Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$7,328.51, plus costs, less any credits for payments received.

The Defendant made payments of \$2,199.

Costs are \$0.

The Stipulated Agreement was filed 7/21/25.

A dismissal was entered on 7/21/25.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$5,129.51.

Plaintiff to file order on Motion, as well as submit Judgment.

12. 9:00 AM CASE NUMBER: L25-05758

CASE NAME: CITIBANK N.A. VS. CYNTHIA GANCAYCO

***HEARING ON MOTION IN RE:**

FILED BY: CITIBANK N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where she was personally with notice of the Summons and Complaint. The address was also in an attachment to the Complaint.

Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$5,354.07, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$780.

Costs are \$583.61.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$5,937.68.

Plaintiff to file order on Motion, as well as submit Judgment.

13. 9:00 AM CASE NUMBER: L25-05764

CASE NAME: CAPITAL ONE N.A. VS. ALLEN BREZAC

***HEARING ON MOTION IN RE: MOTION TO BE RELIEVED AS COUNSEL FILED BY RAYMOND LEE
FILED BY: BREZAC, ALLEN**

TENTATIVE RULING:

Background

Counsel for Defense has requested to withdraw from the case. The matter has been dismissed, however, so the issue appears to be moot.

If counsel would still like to proceed with the motion, then counsel should appear on 3/17/26, 9am, for an in camera review.

Otherwise, the matter will be dropped.

14. 9:00 AM CASE NUMBER: L25-07358

CASE NAME: JPMORGAN CHASE BANK, N.A. VS. CHRIS CHATMAN

***HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER
STIPULATION FILED BY PLN ON 12/30/25**

FILED BY: JPMORGAN CHASE BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where he was personally with notice of the Summons and Complaint. The proof of service of the Summons and

Complaint included a declaration of diligence, where the process server indicated they spoke, at the address, to a woman identifying herself as the spouse of the Defendant, and who indicated Defendant resided at that address. The address was also in an attachment to the Complaint.

Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that he was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$9,350.25, less any credits for payments received.

The Defendant made payments of \$780.

Costs are \$0.

The Stipulated Agreement was filed 9/19/25.

A dismissal was entered on 9/19/25.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$8,320.

Plaintiff to file order on Motion, as well as submit Judgment.

15. 9:00 AM CASE NUMBER: L25-08198

CASE NAME: JPMORGAN CHASE BANK N.A. VS. CHRIS CHATMAN

***HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION FILED BY PLN ON 12/30/25**

FILED BY: JPMORGAN CHASE BANK N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

In the instant matter, Plaintiff indicates they served Defendant notice of this motion via mail. But there is no evidence to support that this is in fact Defendant's address. There's no evidence, for instance, that Defendant had previously been served at this address with any prior pleadings, such as the Summons and Complaint.

Disposition

Motion is continued to 6/9/26, 9am, for Plaintiff to serve Defendant.